



United States
Attorney's Office
Southern District of New York



Correction Officers Charged With Years-Long Healthcare Fraud Scheme Following Use Of Force Incidents On Rikers Island

Monday, May 19, 2025

For Immediate Release

U.S. Attorney's Office, Southern District of
New York

Jay Clayton, the United States Attorney for the Southern District of New York; Jocelyn E. Strauber, the Commissioner of the New York City Department of Investigation ("DOI"); and Lucy Lang, the Inspector General for the State of New York, announced today the unsealing of three Indictments charging one current and two former correction officers employed by the New York City Department of Correction ("DOC") at Rikers Island with healthcare fraud, mail fraud, and false statements related to healthcare matters. TODD FAUSTIN, JOVANNY CONCEPCION, and STEVEN MURPHY were arrested earlier today and presented this afternoon before U.S. Magistrate Judge Robert W. Lehrburger. Their cases are assigned to U.S. District Judges Loretta A. Preska and Lewis J. Liman.

U.S. Attorney Jay Clayton said: "As alleged, the defendants defrauded New Yorkers by making hundreds of thousands of dollars in fraudulent workers compensation claims. Today's arrests demonstrate this Office's continuing commitment to protecting New Yorkers from corruption at Rikers Island."

DOI Commissioner Jocelyn E. Strauber said: "New York City's workers' compensation system is a vital resource for City employees injured on the job. These three current and former Department of Correction officers, as charged, defrauded that system of almost \$1 million in total, through false claims about physical injuries. To reduce the risk of future fraud, DOI recommends reforms to the DOC and the New York City Law Department's policies and procedures, set forth in a report issued today. I thank the Law Department for referring concerns about workers' compensation claims to DOI, and for its assistance in this investigation. I also thank the U.S. Attorney's Office for the Southern District of

New York and our other law enforcement partners for their continuing commitment to protect City funds.”

New York State Inspector General Lucy Lang said: “Public trust in government requires that law enforcement acts with the utmost integrity. Lying about an ongoing injury to get workers’ compensation benefits while engaging in strenuous employment and activities, as alleged here, is an affront to the honest workers whom the system is built to protect. With thanks in this case to our partnership with the Southern District of New York and the NYC Department of Investigation, we will continue to seek accountability for anyone who undermines New Yorkers’ trust by defrauding the workers’ compensation system.”

As alleged in the Indictments:^{[1](#)}

The New York State Worker’s Compensation Board (the “Board”) administers New York State’s no-fault workers’ compensation system, which guarantees medical care and cash benefits to people who are injured at work, including DOC employees. Payments by the Board made to DOC employees are paid from the New York City Treasury. For years, FAUSTIN, a current DOC employee, and CONCEPCION and MURPHY, who were both formally employed by DOC, were DOC correction officers assigned to work at Rikers Island. During that time period, each defendant engaged in a years-long scheme to falsely claim that they were injured while on duty at Rikers Island during incidents with incarcerated individuals requiring the use of force. To effectuate this scheme, each defendant made false statements to the Board, their own physicians, and independent medical examiners claiming these fake injuries. In total, FAUSTIN received \$469,705.39 in benefits to which he was not entitled; CONCEPCION received \$232,427.97; and MURPHY received \$294,037.83.

* * *

CONCEPCION, 33, of New York, New York, is charged with one count of healthcare fraud and one count of mail fraud, each of which carries a maximum sentence of 20 years in prison, and one count of making false statements related to health care matters, which carries a maximum sentence of five years in prison.

MURPHY, 31, of New York, New York, is charged with one count of healthcare fraud and one count of mail fraud, each of which carries a maximum sentence of 20 years in prison, and one count of making false statements related to health care matters, which carries a maximum sentence of five years in prison.

FAUSTIN, 43, of New York, New York, is charged with one count of healthcare fraud and one count of mail fraud, each of which carries a maximum sentence of 20 years in prison, and one count of making false statements related to health care matters, which carries a maximum sentence of five years in prison.

The maximum potential sentences in this case are prescribed by Congress and provided here for informational purposes only, as any sentencing of the defendants will be determined by the judge.

Mr. Clayton praised the outstanding investigative work of DOI, the New York State Office of Inspector General, and the Special Agents and Task Force Officers assigned to the U.S. Attorney's Office for the Southern District of New York. Mr. Clayton also thanked the New York City Police Department's Internal Affairs Bureau and New York State Police for its cooperation and assistance.

The prosecution of this case is being handled by the Office's Civil Rights Unit in the Criminal Division and the Public Corruption Unit. Assistant U.S. Attorneys Kaiya Arroyo, Frank Balsamello, and Alexie Rothman are in charge of the prosecution.

The charges contained in the Indictments are merely accusations, and the defendants are presumed innocent unless and until proven guilty.

[u.s. v. concepcion indictment.pdf](#) [u.s. v. faustin indictment.pdf](#) [u.s. v. murphy indictment.pdf](#)

¹ As the introductory phrase signifies, the entirety of the text of the Indictments and the description of the Indictments set forth herein constitute only allegations, and every fact described should be treated as an allegation.

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PUBLIC CORRUPTION

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